

Court No. - 40

Case :- WRIT - C No. - 32059 of 2014

Petitioner :- M/S Sparsh Industries Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi, A.N. Singh

Hon'ble Krishna Murari, J.

Hon'ble Ram Surat Ram (Maurya), J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard Sri Mayank Agrawal, learned counsel for the petitioner, Sri Kamal Kesarwani, holding brief of Sri Baleshwar Chaturvedi, who has accepted notice on behalf of respondents-1 and 2 and Sri Arvind Goswami, holding brief of Sri A.N. Singh, who has accepted notice on behalf of respondent-3.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 27.05.2014 issued by the respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others). Learned counsel for the petitioner further submits that in several matters identical questions are involved.

Respondents may file counter affidavit within six weeks. Petitioner will have two weeks thereafter for filing rejoinder affidavit.

List after expiry of the aforesaid period.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above, it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 5.6.2014

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Court No. - 29

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Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi, A.N. Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Pramod Kumar Srivastava, J.

Connect with Writ Petition No. 30898 of 2016.

Order Date :- 2.11.2016

YK

(Pramod Kumar Srivastava, J.) (Tarun Agarwala, J.)

Chief Justice's Court

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Counsel for Respondent :- Baleshwar Chaturvedi, A.N. Singh

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

Dismissed.

For orders, see order of date passed in Writ-C No. 30898 of 2016.

Order Date :- 21.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)